

Tentative Rulings for September 2, 2026

Department PS1

To request oral argument, you must notify Judicial Secretary Molly Frabotta at (760) 904-5722 and inform all other counsel no later than 4:30 p.m.

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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1.

CASE #	CASE NAME	HEARING NAME
CVPS2601156	HOME EXPO FINANCIAL INC. VS SPIROPOULOS	DEMURRER ON COMPLAINT OF HOME EXPO FINANCIAL INC.

Tentative Ruling: A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (C.C.P. § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of Univ. of Cal.* (1990) 51 Cal.3d 120, 125.)

The court assumes the truth of all material facts which have been properly pleaded and of facts which may be inferred from those expressly pleaded. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) A demurrer, however, does not admit contentions, deductions, or conclusions of fact or law. (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defects can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

A special demurrer lies where the pleading is uncertain, ambiguous, or unintelligible. (C.C.P. § 430.10(f).) “A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (*Khoury v. Maly’s of Cal., Inc.* (1993) 14 Cal.App.4th 612, 616.) As a result, a special demurrer for uncertainty is not intended to reach failure to incorporate sufficient facts in the pleading but is directed only at uncertainty existing in the allegations already made. (*People v. Taliaferro* (1957) 149 Cal.App.2d 822, 825.) Where the complaint is sufficient to state a cause of action and to apprise defendant of issues he or she is to meet, it is not properly subject to a special demurrer for uncertainty. (*Id.*)

Demurrer to Entire Complaint:

In response to possible foreclosures in relation to the Covid-19 pandemic, in 2020, the California Legislature passed SB 1079, which in part, added Civil Code § 2924m. (Sen. Rules Com., Off. of Sen. Floor Analyses of Sen. Bill No. 1079 (2019-2020 Reg. Sess.) as amended August 31, 2020.) “The bill proposes a trio of provisions intended to mitigate against blight, vacancy, and the transfer of residential property ownership from owner-occupants to corporate landlords in the event that California experiences a wave of foreclosures.” (*Id.* at p. 2.) The legislative comments noted that decline in homeownership rates, with institutional investors transforming the market into a rental market. (*Id.* at p. 4.)

In pertinent part, Civil Code § 2924m provides that 45 days after a trustee’s sale, “an eligible bidder may submit to the trustee a bid in an amount that exceeds the last and highest bid at the trustee’s sale.” (Civ. Code § 2924m(c)(4).) The statute defines an “eligible bidder” as a “prospective owner-occupant,” which in turn is defined as a “natural person who presents to the trustee an affidavit that...they will maintain their occupancy for at least one year.” (Civ. Code § 2924m(a)(1)(B) and (a)(3)(B).)

Defendant demurs to the entire Complaint, arguing that there is no private right of action under Civil Code § 2924m. However, in the context of a demurrer, the question is not whether the title of the cause of action is one that the plaintiff intended; rather, the test is whether the pleading states any valid claim entitling the plaintiff to relief. (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38-39 [“If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer.”]) When there are several causes of action in the complaint, a demurrer to the entire complaint may be overruled if any cause of action is properly stated. (*Warren v. Atchison, Topeka & Santa Fe Ry. Co.* (1971) 19 Cal.App.3d 24, 36.)

1st Cause of Action Fraud:

The elements of fraud are: (1) misrepresentation or concealment, (2) knowledge of falsity, (3) intent to defraud, (4) justifiable reliance, and (5) resulting damage. (*Lovejoy v. AT&T Corp.* (2004) 119 Cal.App.4th 151, 157-158.)

“A promise to do something necessarily implies the intention to perform; hence, where a promise is made without such intention, there is an implied misrepresentation of fact that may be actionable fraud. [Citations.]” (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638.) Accordingly, to sufficiently allege the defendant made a misrepresentation in a promissory fraud action, the complaint must allege the defendant: (1) made a representation of intent to perform some future action, i.e., a promise, and (2) did not really have that intent at the time that the promise was made, i.e., the promise was false. (*Id.*)

“The essential elements of a count for intentional misrepresentation are: (1) a misrepresentation, (2) knowledge of falsity, (3) intent to induce reliance, (4) actual and justifiable reliance, and (5) resulting damage.” (*Chapman v. Skype* (2013) 220 Cal.App.4th 217, 230-231.) The elements of a claim for negligent misrepresentation are: (1) misrepresentation of a past or existing material fact, (2) without reasonable ground for believing it to be true, (3) with intent to induce another’s reliance on the fact misrepresented; (4) ignorance of the truth and justifiable reliance on the misrepresentation by the party to whom it was directed; and (5) resulting damage. (*Hasso v. Hapke* (2014) 227 Cal.App.4th 107, 127.)

Every element of a cause of action for fraud and misrepresentation must be pled factually and specifically, and the policy of liberal pleading does not apply. (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 47; *Charnay v. Cobert* (2006) 145 Cal.App.4th 170, 185, fn. 14.) “This particularity requirement necessitates pleading *facts* which ‘show how, when, where, to whom, and by what means the representations were tendered.’ [Citation.]” (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.)

Here, Plaintiff alleges that Defendant knowingly made a false misrepresentation to the foreclosure trustee that he would reside in the Property for a year with the intent to induce the foreclosure trustee to allow him to submit a post-sale bid on the Property, that the foreclosure trustee relied on Defendant’s misrepresentations when it declared Defendant the winner of the foreclosure sale, that Plaintiff relied on the misrepresentations when it decided not to immediately file a complaint for declaratory

judgment to determine the correct winner of the foreclosure sale, and that Plaintiff was harmed by the trustee's reliance. (Complaint, ¶¶ 23-30.) Although Plaintiff alleges that he relied on Defendant's misrepresentation to the foreclosure trustee, Plaintiff fails to allege that Defendant made a false misrepresentation that was directed at Plaintiff for the purpose of inducing Plaintiff to rely upon the misrepresentation to his detriment.

2nd Cause of Action for Unjust Enrichment:

"Unjust enrichment is not a cause of action," but rather, is "just a restitution claim." (*De Havilland v. FX Networks, LLC* (2018) 21 Cal.App.5th 845, 870.) In *Levine v. Blue Shield of California* (2010) 189 Cal.App.4th 1117, the Fourth District held that the trial court properly sustained a demurrer to an unjust enrichment claim, explaining, "[a]lthough some California courts have suggested the existence of a separate cause of action for unjust enrichment [citation] this court has recently held that '[t]here is no cause of action in California for unjust enrichment. Unjust enrichment is synonymous with restitution.'" (*Levine, supra*, 189 Cal.App.4th at 1138 [internal citations and quotations omitted].)

Defendant's General Demurrer as to the 1st Cause of Action SUSTAINED with leave to amend. Plaintiff to file an amended complaint within 20 days.

Defendant's General Demurrer as to the 2nd Cause of Action SUSTAINED without leave to amend.

Defendant's Special Demurrer as to the 1st and 2nd Causes of Action OVERRULED.

Case Management Conference continued to November 4, 2026.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2602316	WIRED WORKS LLC VS H.N. AND FRANCES C. BERGER FOUNDATION	HEARING ON ANTI-SLAPP MOTION (SPECIAL MOTION TO STRIKE)

Tentative Ruling: "The Legislature enacted...anti-SLAPP statute [strategic lawsuit against public participation]...to provide a procedural remedy to dispose of lawsuits that are brought to chill the valid exercise of constitutional rights. [Citation.]" (*Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1055.) Code of Civil Procedure section 425.16 provides a two-step test in determining whether a cause of action constitutes a SLAPP. (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 88; Code Civ. Proc., §425.16(b)(1).) First, the defendant must make the "threshold showing" that the challenged cause of action arises from "protected speech or petition activity." (*Id.*) "[T]he statutory phrase 'cause of action...arising from' means simply that the defendant's act underlying the plaintiff's cause of action must *itself* have been an act in furtherance of the right of petition or free speech." (*City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 78, original italics.) This step is satisfied if the defendant shows that the challenged claims arise from one of the four protected activities provided under Code Civ. Proc., §425.16(e).

Second, "[i]f the court finds the defendant has met this threshold burden, it then determines whether the plaintiff has demonstrated a probability of prevailing on the merits

of the plaintiff's claim." (*Navellier v. Sletten*, *supra*, 29 Cal.4th at 88-89.) To meet this second step, the plaintiff must demonstrate: (1) "that the complaint is both legally sufficient" and (2) "supported by a...prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited. [Citation.]" (*Id.* at 89.) In analyzing this step, the court considers "the pleadings and supporting and opposing affidavits stating the facts upon which the liability or defense is based." (Code Civ. Proc., §425.16(b).) "Looking at those affidavits, [the courts] do not weigh credibility, nor...evaluate the weight of the evidence. Instead [the courts] accept as true all evidence favorable to the plaintiff and assess the defendant's evidence only to determine if it defeats the plaintiff's submission as a matter of law." (*Overstock.com, Inc. v. Gradient Analytics, Inc.* (2007) 151 Cal.App.4th 688, 699.) "Only a cause of action that satisfies both prongs...is a SLAPP, subject to being stricken under the statute." (*Navellier v. Sletten*, *supra*, 29 Cal.4th at 88-89.)

Defendant seeks to strike only a portion of the FAC alleging a cause of action for defamation purportedly arising out of protected activity. This is a permitted practice. Where the challenged cause of action arises from both protected and unprotected activity, i.e., a mixed cause of action, courts follow the steps established in *Baral v. Schnitt* (2016) 1 Cal.5th 376: "the unprotected activity is disregarded at [the first step of the anti-SLAPP analysis]. If the court determines that relief is sought based on allegations arising from activity protected by the statute, then second step is reached. There, the burden shifts to the plaintiff to demonstrate that each challenged claim based on protected activity is legally sufficient and factually substantiated. ... If not, the claim is stricken." (*Area 51 Productions, Inc. v. City of Alameda* (2018) 20 Cal.app.5th 581, 595, internal quotation omitted.) The Supreme Court in *Baral* reasoned that that "the Legislature's choice of the term 'motion to strike' reflects the understanding that an anti-SLAPP motion, like a conventional motion to strike, may be used to attack part of a count as pleaded." (*Baral*, *supra*, 1 Cal.5th at 393-395 [disapproving *Mann v. Quality Old Time Service, Inc.* (2004) 120 Cal.App.4th 90, which held that a cause of action, based on both protected and unprotected activity, is not meritless and the entire cause of action will stand if a plaintiff can show a probability of prevailing on any part of its claim].) "It follows, then, that courts may rule on plaintiffs' specific claims of protected activity, rather than reward artful pleading by ignoring such claims if they are mixed with assertions of unprotected activity." (*Id.* at 393.)

The challenged claim is deemed a claim for defamation:

Here, the challenged cause of action is a claim which Plaintiffs style as negligence. Defendant contends that the mislabeled negligence claim is really a claim of defamation which it contends arises from protected activities as described under subdivision (e)(1),(2), and (4) as either "statements made before a legislative, executive, or judicial proceeding," or "statements made in connection with an issue under consideration or review by a legislative, executive, or judicial body," or made in "furtherance of the exercise of the constitutional right of petition or free speech in connection with a public issue or an issue of public interest."

Plaintiffs oppose the motion, arguing that the eleventh cause of action is a general negligence claim that rests on Defendant's breach of multiple other duties which have nothing to do with the purported petitioning activity such as duties (1) not to make careless

representations about Defendant's intentions, (2) to properly manage the project and the parties' relationship, and (3) to take reasonable steps to protect Plaintiffs from foreseeable harms that resulted from Defendant's conduct. Plaintiffs contend that the allegation that Defendant breach its duty by "failing to investigate the truth of the statements made by Rover before transmitting them to IID and others" "could conceivably touch on petition activity but it does not turn on the contents of Rover's statements" but rather "turns on Defendant's breach of a duty arising from the parties' special relationship to manage its corporate conduct competently." Plaintiffs' argument is rejected.

Defamation is communication of a false and unprivileged statement about an individual or corporate entity and may consist of either libel or slander causing injury to plaintiff's reputation. (*Shively v. Bozanich* (2003) 31 Cal.4th 1230, 1242; Civ. Code, §§ 44 [libel], 46 [slander]; See *Live Oak Publishing Co. v. Cohagan* (1991) 234 Cal.App.3d 1277, 1284 ["An entity other than a natural person may be libeled"].) The word defamed or defamatory is specifically used in the pleading in describing that Defendant, by way of its general counsel Rover, defamed or made defamatory statements about Plaintiffs, including that he falsely claimed Plaintiffs committed fraud and ethical violations, which alleged caused injuries to Plaintiffs. (FAC, ¶ 3.) Therefore, the plain language of the pleading alleges a claim for defamation. " 'As is true with summary judgment motions, the issues in an anti-SLAPP motion are framed by the pleadings.' [Citations.]" (*Medical Marijuana, Inc. v. Project CBD.com* (2020) 46 Cal.App.5th 869, 883.) "Thus, the act or acts underlying a claim for purposes of an anti-SLAPP statute is determined from the plaintiffs' allegations." [Citation.] (*Ibid.*)

Defendant fails to show the defamation claim arises out of protected activity under (e)(1) and (e)(2):

Nevertheless, Plaintiffs correctly argue that nothing in the FAC indicates that such allegedly defamatory statements were made at a governmental proceeding or concerned matters under governmental consideration or public interest, and Defendant has therefore failed to meet the threshold showing that the claim for defamation arises out of a statement which would be protected by the anti-SLAPP statute.

"The only means specified in section 425.16 by which a moving defendant can satisfy the ["arising from"] requirement is to demonstrate that the defendant's conduct by which plaintiff claims to have been injured falls within one of the four categories described in subdivision (e)." (*Park v. Board of Trustee of California State University* (2017) 2 Cal.5th 1057, 1063.) The moving defendant must identify all allegations of protected activities and demonstrate that the challenged claims arise from those activities. (*Shahbazian v. City of Rancho Palos Verdes* (2017) 17 Cal.App.5th 823, 831.) The "courts should consider the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability. [Citation.]" (*Ibid.*) Here, Defendant identifies the following allegations of the FAC constituting activity protected under the anti-SLAPP statute:

That Defendant "...actively defamed Plaintiffs to IID officials, government agencies, and others in the industry, falsely claiming fraud and ethical violations, thereby destroying Plaintiffs' reputation and interfering with their ability to perform on the very project they had developed." (FAC, pg. 2:24-17.)

“The very day after Vance’s removal (in March of 2025), Rover called IID’s General Manager and began making false and defamatory statements about Plaintiffs.” (FAC, pg.9:3-4.)

Defendant breached its duty to Plaintiff by “making careless representations about the Foundation’s intentions; failing to investigate the truth of the statements made by Rover before transmitting them to IID and others....” (FAC, 26:11-13.)

Here, the allegations of the pleading do not establish that the claim for defamation arises out of protected activities because the allegedly defamatory statements were made after Plaintiff had obtained the formal approval for the project. “The anti-SLAPP statute protects all petition-related activity before a governmental body whether or not the statements involve a public issue: “[A]ll that matters is that the First Amendment activity take place in an official proceeding or be made in connection with an issue being reviewed by an official proceeding.” (*Briggs v. Eden Council for Hope & Opportunity* (1999) 19 Cal.4th 1106, 1115 “[t]he constitutional right to petition ... includes the basic act of filing litigation or otherwise seeking administrative action....”). “[C]ommunications preparatory to or in anticipation of the bringing of an official proceeding are within the protection of section 425.16....” (*Hansen v. California Dept. of Corrections & Rehab.* (2008) 171 Cal.App.4th 1537, 1544 (Hansen).) Here, as Plaintiffs point out, the disparaging communications were neither made before an official proceeding or in connection with an issue under consideration or review by an official body because the alleged communications were made to IID’s general manager and “others” in a setting unrelated to the substation project. By March 2025, Plaintiffs had already accomplished what was needed to build the electrical substation and IID had formally approved the substation project. (FAC, ¶ 26.) Hence, any allegedly defamatory, false statements by Rover could not have contributed to IID’s approval process or concerned matters under consideration. Furthermore, the FAC does not allege that the statements culminated into any lawsuits against Plaintiffs or revocation of IID’s formal approval; rather it is alleged that Defendant retained the benefits of Plaintiffs’ labor. Nor is there allegation that Rover’s statement to IID’s general manager affected the project in any manner or that it led to IID deciding to work with another contractor. Rather, Plaintiffs’ ability to continue to work on the project was terminated by Defendant which made the decision to work with another contractor. Therefore, allegedly disparaging communications were not made in connection with an issue under review as approval had already been obtained. Not all communications made to a government agency “fall within the ambit of the anti-SLAPP statute.” (*A.F. Brown Electrical Contractor, Inc. v. Rhino Electric Supply, Inc.* (2006) 137 Cal.App.4th 1118, 1129.) “[T]he mere fact of a government agency’s involvement in a transaction does not, without more, make a proceeding ‘official’ ” within the meaning of subdivision (e)(1) of the anti-SLAPP statute. (*Li v. Jin* (2022) 83 Cal.App.5th 481, 493.) Also, subdivision (e)(2) “‘does not accord protection to suits arising from any act having any connection, however remote, with an official proceeding ... [;] the statements or writings in question must occur in connection with an issue under consideration or review in the proceeding.’” (*Blackburn v. Brady* (2004) 116 Cal.App.4th 670, 701.) The protection under the statute therefore contemplates an “ongoing – or, at the very least, immediately pending” at the time of the communication. (*Rand Resources, LLC v. City of Carson* (2019) 6 Cal.5th 610, 627.)

Defendant fails to show that the defamation claim arises out of activity concerning a public interest under subdivision (e)(4):

Defendant fails to show that the defamation claim arises out of matter concerning a public interest. “A few guiding principles may be derived from decisional authorities. First, ‘public interest’ does not equate with mere curiosity.... Second, a matter of public interest should be something of concern to a substantial number of people....” (*Thomas v. Quintero* (2005) 126 Cal.App.4th 635, 658.) “Third, there should be some degree of closeness between the challenged statements and the asserted public interest....” (*Ibid.*) “Fourth, the focus of the speaker’s conduct should be the public interest rather than a mere effort ‘to gather ammunition for another round of [private] controversy....’” (*Id.* at 658-659, brackets in original.) “The ‘public interest’ component of section 425.16, subdivision (e)(3) and (4) is met when ‘the statement or activity precipitating the claim involved a topic of widespread public interest,’ and ‘the statement ... in some manner itself contribute[s] to the public debate.’ [Citation.]” (*Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc.* (2005) 129 Cal.App.4th 1228, 1246.) Here, the challenged allegations do not establish any of the above factors. The allegedly defamatory statements were made after Defendant removed Vance, the core decisionmaker on Plaintiffs’ involvement with the project, and immediately before Defendant pursued another partner to move forward with the project. As set forth above, allegedly Plaintiffs had already obtained the necessary approval and made the arrangements to move forward with building the electrical substation and micro grid. Any allegedly false statements about Plaintiffs’ fraud and ethical violation were not a matter concerning an ongoing review and approval of the project concerning any public interest.

Defendant, relying on *Tuschscher Development Enterprises, Inc. v. San Diego Unified Port Dist.* (2003) 106 Cal.App.4th 1219, argues that seeking approval of electrical-substation infrastructure through a public utility district is independently protected as relating to a matter of public interest. Defendant’s reliance on Tuchscher is inapposite. In *Tuchscher*, the court upheld the granting of a motion to strike under anti-SLAPP statute in an action brought by a plaintiff developer for intentional and negligent interference with prospective economic advantage for port commissioner’s alleged wrongful acts in advocating that city ask another developer to develop property which interfered the plaintiff’s exclusive agreement with the city granting it the rights to negotiate to develop bayfront property. (*Id.* at 1233.) Among other reasons, the court noted that the communications to either the city or another developer involving the proposed development of the bayfront property had a broad effect on the community and hence a matter of public interest protected activity under (e)(4). (*Ibid.*) Here, it is not alleged that the allegedly disparaging remark affected the approval in any way.

Defendant fails to show that allegations concerning relief for restitution are subject to a motion to strike under anti-SLAPP statute:

Furthermore, Defendant’s request to strike allegations regarding relief for restitution is without any proper basis. Specifically, Defendant seeks to strike the allegations that:

“... the Foundation retained the benefit of all of Plaintiff’s work: the IID approval, the engineering designs, the regulatory relationships, the governmental goodwill, and all documentation prepared by Plaintiffs. (FAC, pg. 9:19-21.)

“Appropriating for the Foundation’s exclusive benefit the IID approval, the engineering work product, the regulatory and political relationships, and the entire value of Plaintiffs’ year-long investment, while terminating Plaintiffs without compensation...” (FAC, 25:4-6.)

Defendant argues that these allegations must be stricken because they concern relief based on “the results of protected communications, submissions, meetings, and advocacy directed to IID and other public official during the substation approval process.” (MPA iso Motion, 15:12-17.) Here, not only has Defendant failed to show that such request for relief concerns protected activities, but Defendant also misconstrues the function of the special motion under the anti-SLAPP statute. A claim is subject to an anti-SLAPP motion only if the conduct constituting the protected activity “itself is the wrong complained of.” (*Park v. Board of Trustees of Calif. State Univ.*, *supra*, 2 Cal.5th at 1060.) The allegation that Defendant retained benefits of Plaintiffs’ labor is not itself an allegation of a protected activity. Moreover, prayer for relief made in pleading are not causes of action that could be subject to the special motion to strike under anti-SLAPP statute because it is a remedy and not a separate claim. (*See Marlin v. Amico Venezia, LLC* (2007) 154 Cal.App.4th 154 [injunction is a remedy, not a cause of action].)

Based on the foregoing, because Defendant has not demonstrated that the defamation action is based on any protected activity, Defendant has failed to meet its initial burden. Therefore, the analysis stops here, and no burden shifts to Plaintiffs to satisfy the second prong of the anti-SLAPP motion.

Plaintiff’s Evidentiary Objections: DECLINE to RULE, not material to the analysis of this motion.

Plaintiff’s Request for Judicial Notice GRANTED as to items 1-7 GRANTED.

Defendant’s Evidentiary Objections: DECLINE to RULE, not material to the analysis of this motion.

Defendant’s Anti-SLAPP Motion DENIED.

Case Management Conference confirmed for October 8, 2026

3.

CASE #	CASE NAME	HEARING NAME
CVPS2602661	DEVECCHI VS KIA AMERICA, INC.	HEARING RE: MOTION TO STRIKE COMPLAINT OF ROBERT DEVECCHI BY KIA AMERICA, INC.

Tentative Ruling: “[A] motion to strike is generally used to reach defects in a pleading which are not subject to demurrer.” (*Pierson v. Sharp Memorial Hospital, Inc.* (1989) 216 Cal.App.3d 340, 342.) A motion to strike may be brought to strike the portion of a pleading on the grounds that that pleading contains “irrelevant, false, or improper matter” or “*not*

drawn in conformity with California law.” (CCP §§ 436(a) & (b), italics added.) As with a demurrer, “[t]he grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice” or “based on matter of which the court may take judicial notice...” (*Id.*, § 437(a), (b).)

“Irrelevant matter” as used in section 436 for a motion to strike shares the same meaning as “immaterial allegation” as defined by section 431.10. (*Id.*, § 431.10(c).) The Code defines “immaterial allegation” as one of the following: (1) “An allegation that is not essential to the statement of a claim or defense”; (2) “An allegation that is neither pertinent to nor supported by an otherwise sufficient claim or defense”; or (3) “A demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.” (*Id.*, § 431(b)(1)-(3).)

CCP §871.20(a) provides that Chapter 12 applies to an action “brought against a manufacturer who has elected under Section 871.29 to proceed under this chapter, seeking restitution or replacement of a motor vehicle... or for civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code, where the request for restitution or replacement is based on noncompliance with the applicable express warranty.”

Plaintiff’s action falls within that description. Plaintiff alleges that Defendant failed to conform the vehicle to its express warranty after a “reasonable number of opportunities to do so” and failed “to promptly repurchase or replace the Vehicle.” (Compl., ¶¶ 21-22.) Plaintiff seeks restitution and a §1794(c) civil penalty. (*Id.*, ¶¶ 26, 29; prayer for relief, ¶¶ 2, 8.)

Plaintiff relies on §871.20(b), which states that Chapter 12 “does not apply to service contract claims under Section 1794 of the Civil Code or any action seeking remedies that are not restitution or replacement of a motor vehicle.” Plaintiff therefore argues that the entire action falls outside of Chapter 12 because the complaint also seeks incidental and consequential damages, actual and statutory damages, and prejudgment interest. (Compl., prayer for relief, ¶¶ 3-5.)

Section 871.20(a) covers actions seeking §1794(c) civil penalties. Reading subdivision (b) to exempt an entire action whenever a plaintiff adds routine requests for incidental damages or interest would nullify subdivision (a). It would also permit a plaintiff to avoid Chapter 12 through the prayer.

The larger issue is the notice requirement. Civ. Code §1794(c) permits a civil penalty if the failure to comply with the Song-Beverly Act was willful. Effective July 1, 2025, the Legislature enacted a new requirement, i.e. the consumer must, at least 30 days before commencing an action seeking civil penalties, notify the manufacturer and demand that the manufacturer repurchase or replace the motor vehicle. (CCP § 871.24 (a).)

Section 871.24(e)(1) provides:

A request for or action seeking civil penalties under subdivision (c) of Section 1794 of the Civil Code ***shall not be allowed or maintained*** if both of the following conditions are present:

- (A) Within 30 days after receipt of the notice, the manufacturer makes an offer of restitution or replacement of the motor vehicle for the amount provided by subdivision (d) of Section 1793.2 of the Civil Code and Section 871.27, plus reasonable attorney's fees and costs, if the consumer is represented by an attorney.
- (B) The motor vehicle replacement or restitution is completed within 60 days from the date of receipt of the original notice.

Furthermore, section 871.24(h) provides:

An action seeking restitution or replacement under Section 871.20 may be commenced without compliance with subdivision (a). In that event, the consumer shall have possession of the motor vehicle at the time of the filing of the complaint, and shall not seek civil penalties, whether by amendment of the complaint or otherwise. If, however, notice is provided pursuant to subdivision (a) and the manufacturer fails to comply with their obligations under subdivision (e), the consumer may commence an action for restitution or replacement, including, but not limited to, civil penalties under subdivision (c) of Section 1794 of the Civil Code.

In short, the statute gives two procedural options: (1) to provide pre-suit notice and preserve a potential §1794(c) penalty claim, or (2) to file immediately for restitution or replacement but may not seek that penalty.

In interpreting a statute, the court looks to ascertain the Legislature's intent. (*LGCY Power, LLC v. Superior Court* (2022) 75 Cal.App.5th 844, 860.) The court first looks to the plain meaning, then the legislative history, and finally to the reasonableness of the proposed construction. (*Ibid.*)

The plain language of §871.24(a) and (h) makes notice a prerequisite to seeking a section 1794(c) penalty. The legislative history confirms that the Legislature intended to establish a prelitigation process through which manufacturers would receive notice and a chance to resolve repurchase/replacement claims before consumers sought civil penalties.

The legislative history indicates the following:

Given California's prevalent car culture, the state's lemon law statutes are a foundational consumer protection for millions of Californians. Unfortunately, in recent years a flurry of civil actions have been filed under the lemon law statutes and now discovery disputes and protracted settlement processes are serving to delay the court's processing of these cases. As a result, California consumers are being denied justice and automobile manufacturers are facing significant legal uncertainty.

AB 1755 is a compromise measure between consumer advocates and automobile manufacturers that seeks to break the civil litigation log jam currently plaguing lemon law disputes. First, this measure provides for clear prelitigation procedures that seeks to protect consumers, provide clarity for automakers, and resolve disputes without ever requiring litigation. Secondly, this measure adopts a streamlined discovery process for cases that do get filed and encourages the use of mediation to resolve cases in a timely manner. Finally, the bill adopts consumer protections to ensure timely compliance with lemon law settlements.

AB 1755 strengthens the consumer protections of the lemon law statutes, provides equity and fairness for all parties to a lemon law dispute, and ensures timely access to justice for California consumers.

(Sen. Com. on Judiciary, Analysis of Assem. Bill No. 1755 (2023-2024 Reg. Sess.) as amended Aug. 26, 2024.) The purpose was to streamline and provide clarity.

Here, this demonstrates an intent of the Legislature to require compliance with the pre-lawsuit notice requirement to maintain an action. Other similar pre-lawsuit notices have been required to be pled, despite nothing in the statutes specifically requiring it to be pled. (See e.g., *Lafferty v. Wells Fargo Bank* (2013) 213 Cal.App.4th 545, 565 [CLRA notice sufficiently pled under Civ. Code §1782].)

The complaint here does not allege that Plaintiff gave Defendant the required written notice under §871.24. Critically, the complaint's dates shows that Plaintiff could not have given notice at least 30 days before filing.

Plaintiff alleges that Plaintiff purchased the vehicle on March 5, 2026. (Compl., ¶ 4.) Plaintiff then filed the complaint on March 24, 2026, only 19 days later. Section 871.24(c) also requires the consumer to "have possession of the motor vehicle" when sending the notice. Thus, Plaintiff could not have possessed the vehicle and provided Defendant with compliant notice at least 30 days before filing this action. Here, the complaint does not allege the required notice. Moreover, the face of the complaint shows that Plaintiff commenced the action without even completing the statutory notice period. Because §871.24 also requires the consumer to *possess* the vehicle when giving notice, Plaintiff could not have provided compliant notice at least 30 days before filing.

Plaintiff's remaining arguments concern the manufacturer's repurchase duty. By contrast, §871.24 concerns the procedure a consumer must follow to seek a §1794(c) penalty. Plaintiff's reliance on Civ. Code §1794(e) also does not cure the deficiency. Here, ¶¶ 29, 37, and 45 pleads subdivision (c), but not (e).

Defendant's Request for Judicial Notice GRANTED.

Defendant's Motion to Strike ¶ 29, lines 4-5; ¶ 37, lines 27-28; ¶ 45, lines 19-20 and ¶ 8 of the Prayer, line 10 is GRANTED with leave to amend.

Plaintiff may file an amended complaint within 15 days.

Case Management Conference confirmed for October 19, 2026.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2602665	CREDITORS ADJUSTMENT BUREAU, INC., VS SOLIDIFIED GC LLC	HEARING RE: MOTION TO SET ASIDE DEFAULT ON COMPLAINT OF CREDITORS ADJUSTMENT BUREAU, INC., BY SOLIDIFIED GC LLC

Tentative Ruling: A motion pursuant to CCP 473(b) must be filed within six months of the clerk's entry of default and also within a "reasonable time" after discovery of the default. (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 234.) A delay of three or more months or more is an unofficial standard under which courts will routinely deny relief unless there is a satisfactory explanation for the delay. (*Stafford v. Mach* (1998) 64 Cal.App.3d 1174, 1184.) The time runs from the entry of the default, not the default judgment. (*Pulte Homes Corp. v. Williams Mechanical, Inc.* (2016) 2 Cal.App.5th 267, 273.) The court is empowered to relieve a party "upon any terms as may be just ... from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (C.C.P. §473(b).) Because the law favors judgments on the merits, "doubts must be resolved in favor of relief...." (*Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 134.)

A court has inherent, equitable power to set aside a judgment on the ground of extrinsic fraud or mistake. (*Bae v. T.D. Service Co. of Arizona* (2016) 245 Cal.App.4th 89, 98.) There are three essential requirements to obtain relief. The party in default must show a meritorious defense, a satisfactory excuse for not presenting a defense to the original action, and diligence in seeking to set aside the default once it was discovered. (*Rappleyea*, 8 Cal.4th 975, 982.) Relief is generally available only for "extrinsic fraud or mistake," but it does not require fraud or mistake in the strict sense—the terms "tend to encompass almost any set of extrinsic circumstances which deprive a party of a fair adversary hearing." (*In re Marriage of Park* (1980) 27 Cal.3d 337, 342.) "Extrinsic fraud occurs when a party is deprived of the opportunity to present a claim or defense to the court as a result of being kept in ignorance or in some other manner being fraudulently prevented by the opposing party from fully participating in the proceeding," while "[e]xtrinsic mistake is found when [among other things] ... a mistake led a court to do what it never intended...." (*County of San Diego v. Gorham* (2010) 186 Cal.App.4th 1215, 1228-1229.) But "extrinsic fraud and extrinsic mistake are unavailable when a party's own negligence allows the fraud or mistake to occur." (*Kramer v. Traditional Escrow, Inc.* (2020) 56 Cal.App.5th 13, 29.) And the fraud or mistake must be extrinsic rather than intrinsic, in the sense that the party must have been denied the opportunity to be heard. If the fraud or mistake goes to the merits of the action, or occurred at trial, it is deemed "intrinsic" and not ground for relief. (*In re Marriage of Thorne & Raccina* (2012) 203 Cal.App.4th 492, 505.) "[I]f a party has been given notice of an action and has not been prevented from participating therein," relief must be denied because "[h]e has had an opportunity to present his case to the court and to protect himself from mistake or from any fraud attempted by his adversary." (*Kulchar v. Kulchar* (1969) 1 Cal.3d 467, 472.)

In this matter, Defendant was served via personal service of Registered Agent United States Corporation Agents, Inc. Service was made by Registered Process Server "G. Moore" on April 30, 2026. Defendant does not dispute service in its Motion to Set Aside Default. According to the CEO of Defendant Solidified GC LLC, Alex Chuo, he was made aware of the lawsuit on May 13th when mailed proof of service by an employee of Plaintiff. (Dec. of Alex Chuo) An email from that employee, Greg Johnson, indicated that Defendant could pay the claimed damages, agree to a payment plan or answer the complaint. Defendant now claims that they relied upon that email, as well as the delay in their agent notifying them of the action and workload of Mr. Chuo, as the reasons for their motion.

The court notes that at the time of the email by Mr. Johnson, there was no indication of any type of extension or waiver of the 30 day requirement for response to a summons. By May 13th, Defendant would still have had until May 30th (actually June 1st because of the weekend) to file a response. Plaintiff did not submit a request for default until June 15th, with default entered by the court on June 16th. This is just over 30 days beyond the time that Mr. Johnson told CEO Chuo of Defendant's options as to how to proceed. Defendant then filed their motion to set aside about 45 days after entry of default.

Regarding discretionary relief, the failure of Defendant's own registered agent to provide notice prior to Plaintiff providing a copy of proof of service is mitigated by the fact that Plaintiff gave Defendant time to file a response. In addition to the original time remaining to file a response when Mr. Johnson emailed Mr. Chuo, Plaintiff waited approximately two more weeks before seeking default. Mr. Chuo, while in trial, chose not to act upon that information. His statement that he relied upon Mr. Johnson's representation that Defendant still had the option to answer is correct. At that time, Defendant still had time to respond and failed to do so. Mr. Chuo's declaration that he had a substantial backlog of professional and personal matters does not provide a sufficient basis for failing to act when notified on May 13th and failing to take action for over 30 days until after notice of default was entered.

As to equitable relief, Defendant has not shown a satisfactory excuse for not presenting a defense, nor has Defendant shown any type of extrinsic fraud or mistake. Defendant's reliance on their own agent failing to notify them of the service of the action and the CEO for Defendant failing to act even after he was given notice of a pending lawsuit and had approximately 30 days from that notice to work on having a response filed is not persuasive.

Motion to Set Aside Default DENIED.

Case Management Conference is vacated.

Order to Show Cause re Default Judgment set for March 23, 2027

5.

CASE #	CASE NAME	HEARING NAME
CVPS2604429	IGBINEDION VS PLEIJ SALON LLC	DEFENDANT JASON OPLAND'S MOTION TO QUASH SERVICE OF SUMMONS FOR LACK OF PERSONAL JURISDICTION

Tentative Ruling: The opposition for this motion is untimely. Oppositions must be filed by the ninth court day before the hearing (C.C.P. §1005(b)) and served in a manner “reasonably calculated to ensure delivery to the other party or parties not later than the close of the next business day” (C.C.P. §1005(c)).

Hearing is continued to October 22, 2026.

Any Reply to be filed by October 15, 2026.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2604429	IGBINEDION VS PLEIJ SALON LLC	DEFENDANT NATISHA FLORENCE-OPLAND'S MOTION TO QUASH SERVICE OF SUMMONS FOR LACK OF PERSONAL JURISDICTION

Tentative Ruling:

Hearing is continued to October 22, 2026.

Any Opposition to be filed by October 9, 2026.

Any Reply to be filed by October 15, 2026.